

FACEBOOK POST — BOYUP BROOK COMMUNITY

Re: Notice of Stay Limit Enforcement & Required Vacation of Site

Issued by CMCA Parks / Flax Mill Boyup Brook Caravan Park

Ref: CMCA-GSP-FMB-001, Version 1.0, Effective 28 May 2026

Deadline on notice: 19 June 2026

[Attach photo of the notice]

This notice was given to a long-term resident at the Flax Mill Boyup Brook Caravan Park. I am sharing it because it raises serious legal questions that this community deserves to know about.

THIS IS NOT LEGAL ADVICE. If you or someone you know received this notice, contact Circle Green Community Legal on (08) 6148 3636 — they specialise in WA tenancy law and help caravan park residents for FREE.

WHAT THE NOTICE SAYS:

Anyone who has been at the park for more than 3 months must vacate by 19 June 2026. That is 21 days notice. No reasons are given. No alternative accommodation is offered.

WHY THIS NOTICE HAS NO LEGAL FORCE — POINT BY POINT

1. ISSUED BY THE WRONG PARTY

This notice is issued by "park management" — CMCA Parks. CMCA is a management contractor. They do NOT hold the caravan park licence. Under the Caravan Parks and Camping Grounds Act 1995 (WA), the licence for this park is held by the Shire of Boyup Brook — not CMCA.

The 2022 Memorandum of Understanding (MOU) between the Shire and CMCA explicitly states: "Long term tenants will remain the responsibility of the Shire." (Shire of Boyup Brook OCM 28 April 2022, Decision Res 22/4/40, carried 9/0.)

A management contractor cannot issue a legally binding eviction notice on behalf of the licensed operator without that operator's explicit authorisation under the correct legal framework.

2. BASED ON A POLICY THAT CITES THE WRONG LAW

The notice references "Guest Stay Policy (Ref: CMCA-GSP-FMB-001, Version 1.0)." That policy document (Section 1, Purpose) states enforcement will occur in accordance with "the Residential Tenancies Act."

The Residential Tenancies Act does NOT apply to caravan park long-stay residents in WA.

The correct Act is the Residential Parks (Long-stay Tenants) Act 2006 (WA).

These are two completely different Acts with completely different eviction rules. The Shire's own officer report (Item 10.4.2, OCM 28 May 2026) correctly listed the Residential Parks (Long-stay Tenants) Act 2006 as the applicable legislation — in the same document that recommended Council endorse the CMCA policy. Council was not

advised of this contradiction before voting.

3. "NO GROUNDS" EVICTIONS ARE BANNED FOR LONG-STAY RESIDENTS

Under the Residential Parks (Long-stay Tenants) Act 2006 (WA):

If the park is your principal place of residence AND you have been there for more than 3 months, you are a "long-stay tenant" and the law protects you.

This notice states it applies to people who have been there "more than three (3) months." That is precisely the group the Parks Act protects.

For residents who own their own van/vehicle and rent only the site (a "site-only" agreement), "no grounds" evictions are COMPLETELY BANNED.
(Residential Parks (Long-stay Tenants) Act 2006 (WA))

This notice gives no statutory grounds for termination. It is a "no grounds" notice directed at the group of people for whom such notices are banned by law.

4. 21 DAYS IS THE WRONG NOTICE PERIOD

Even if there were valid legal grounds to end a long-stay tenancy, 21 days is not the correct notice period.

Under the Residential Parks (Long-stay Tenants) Act 2006 (WA), if an operator seeks to terminate a long-stay agreement for structural reasons such as change of land use, the minimum notice required is 180 days — not 21 days.

(Source: Circle Green Community Legal advice provided to an affected resident, 29 May 2026, confirmed against the Residential Parks (Long-stay Tenants) Act 2006.)

5. ONLY SAT CAN ORDER A LONG-STAY TENANT TO LEAVE

Even if the notice period and grounds were correct, the operator cannot physically remove a long-stay tenant.

Under the Residential Parks (Long-stay Tenants) Act 2006 (WA), if a long-stay tenant does not leave voluntarily, the operator MUST apply to the State Administrative Tribunal (SAT) or Magistrates Court for a formal termination and vacant possession order.

Only a court-appointed bailiff has the legal power to physically remove a long-stay tenant.

This notice contains no reference to SAT. It implies that if you do not leave by 19 June 2026, something will happen to you. It does not tell you what that process actually requires — because under the law, it requires a court order.

6. NO WRITTEN AGREEMENT IS NOT YOUR PROBLEM — IT IS THEIRS

The Parks Act requires park operators to provide long-stay tenants with a written tenancy agreement, a park information guide, and standard park rules.

If you have been at the park for more than 3 months and were never given a written

tenancy agreement, the operator has breached the Act — not you.

The operator cannot use their own failure to provide you with a written agreement as grounds to say your tenancy is informal or unprotected.

A verbal agreement carries the same legal weight as a written one under WA law.

7. THE "ESSENTIAL WORKER EXEMPTION" HAS NO LEGAL BASIS — AND NEITHER CMCA NOR THE SHIRE HAS ANY POWER TO CREATE ONE

The notice states:

"Guests employed as essential workers in the Boyup Brook region may apply for a stay extension. Applications are assessed individually by park management and the Shire of Boyup Brook and are not guaranteed."

This section of the notice is verified against the Residential Parks (Long-stay Tenants) Act 2006 (WA) — the actual legislation. Here is what the Act says:

THE ACT CONTAINS NO "ESSENTIAL WORKER" CATEGORY — WHATSOEVER.

Employment status is completely irrelevant to your rights as a long-stay tenant. Your rights come from the fact that you have occupied a site for more than 3 months as your principal place of residence. The Act does not distinguish between essential workers, non-essential workers, retirees, or anyone else. If you qualify as a long-stay tenant, you have the same protections regardless of what you do for work.

NEITHER CMCA NOR THE SHIRE HAS THE POWER TO CREATE AN EXEMPTION SCHEME.

Under section 9A of the Residential Parks (Long-stay Tenants) Act 2006, the ONLY way an exemption from the Act can be created is by REGULATIONS made by the Governor in Council — and only after the Commissioner has consulted with and invited submissions from interested persons.

A management contractor (CMCA) has no power to create exemptions.
A local government (the Shire of Boyup Brook) has no power to create exemptions.
An internal policy document (CMCA-GSP-FMB-001) has no power to create exemptions.

The "essential worker exemption" is a CMCA invention that has no foundation in WA law. No regulation exists creating such an exemption for this park or any caravan park.

THE EXEMPTION PROCESS REVERSES YOUR LEGAL RIGHTS.

Under the Act, the BURDEN is on the PARK OPERATOR to prove legal grounds for termination — to the State Administrative Tribunal (SAT). You do not have to prove anything to anyone to keep rights that the law already gives you.

The exemption process in this notice flips that burden: it requires YOU to apply to MANAGEMENT, submit employment evidence (employer letters, pay slips, contracts), and wait for CMCA and the Shire to decide whether you qualify. This has the effect of pressuring residents — particularly those who don't consider themselves "essential workers" — into believing they have no right to stay, when in fact the Act protects all long-stay tenants regardless of occupation.

THIS IS WHY THIS SECTION OF THE NOTICE IS PARTICULARLY CONCERNING.

The notice was endorsed by the Shire of Boyup Brook Council (Decision CM 26/05/117, 7/0, OCM 28 May 2026) as part of the CMCA Guest Stay Policy. This means a local government voted to endorse a scheme in which CMCA and the Shire jointly determine

whether residents get to keep rights that the law has already given them — without any regulatory authority to do so.

Residents who applied for an "essential worker exemption" and were told they did not qualify should know: the exemption process itself is not legally valid. The Act does not require you to apply for anything to keep your long-stay tenant rights.

Do NOT sign any "exemption application" or "mutual agreement to end tenancy" without speaking to Circle Green Community Legal first: (08) 6148 3636.

WHAT TO DO IF YOU RECEIVED THIS NOTICE

DO NOT PACK UP AND LEAVE on the basis of this notice alone.

1. Call Circle Green Community Legal: (08) 6148 3636
Free, expert advice on WA tenancy law. They help caravan park residents.
2. Call WA Consumer Protection: 1300 30 40 54
They administer the Residential Parks (Long-stay Tenants) Act 2006 and are currently conducting a statutory review of that Act. You can report that an operator is threatening an unlawful eviction.
3. Do not sign anything management gives you without getting advice first.
4. Keep records: write down dates, times, and exact words of any conversations with management. Keep all receipts for site fees paid.

SOURCES (all public documents):

- Notice of Stay Limit Enforcement & Required Vacation of Site, CMCA Parks, Ref: CMCA-GSP-FMB-001 v1.0, effective 28 May 2026 [the document pictured]
- Shire of Boyup Brook OCM Minutes, 28 May 2026 (unconfirmed), Item 10.4.2, Attachment 10.4.2A (the CMCA Guest Stay Policy). Decision CM 26/05/117, carried 7/0.
- Shire of Boyup Brook OCM Minutes, 28 April 2022, Item 10.4.1 (MOU). Decision Res 22/4/40, carried 9/0: "Long term tenants will remain the responsibility of the Shire."
- Residential Parks (Long-stay Tenants) Act 2006 (WA):
<https://www.legislation.wa.gov.au>
- Caravan Parks and Camping Grounds Act 1995 (WA):
<https://www.legislation.wa.gov.au>
- Consumer Protection WA residential parks law review:
<https://www.consumerprotection.wa.gov.au/residential-parks-law-review>

This post is shared in the public interest. It is not legal advice.
All claims are sourced from public council documents and WA legislation.